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|    |                                               | <p>(6) No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.</p> <p>(7) The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.</p> <p>(b) Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact.</p> <p>(c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.”</p> <p>(Code Civ. Proc. § 377.32 (internal quotations omitted).)</p> <p>Here, on 4/10/25, plaintiff Arcadia Marinero (“Plaintiff”) filed a Notice of Settlement (conditional). (ROA No. 83.) The following day, Plaintiff and defendant Miriam Triana (“Defendant”) settled via Settlement Agreement and Release of Claims. (Ex. 1.) Thereafter, on 9/11/25, Plaintiff passed away in El Salvador. (Chicas Decl., ¶ 2, Ex. 2.) Prior to her death, Plaintiff established The Arcadia Marinero Family Trust dated April 27, 2021. Pursuant to the Trust instrument, Jose Chicas was designated as Successor Trustee. (Chicas Decl., ¶ 1, Ex. 3.) To date, a Request for Dismissal has not been filed and an OSC re Dismissal is set for 6/29/26. (See ROA 96.) Therefore, the action remains pending.</p> <p>In the motion, Jose Chicas alleges Defendant has not complied with the terms of the Settlement Agreement. Plaintiff’s counsel previously advised the Court that they intended to file a motion to enforce the Settlement Agreement. (See ROA 96.)</p> <p>The Court finds Jose Chicas has submitted a declaration that complies with the requirements set forth in Code of Civil Procedure Section 377.32.</p> <p>Therefore, the motion is GRANTED.</p> |
| 7. | <b>ALCANTAR VS. JOHNSON<br/>2025-01482892</b> | <p><b>MOTION FOR LEAVE TO FILE AMENDED COMPLAINT</b></p> <p>Plaintiff’s Motion for Leave to Amend Complaint is GRANTED.</p> <p>Plaintiff seeks leave to amend the complaint to allege facts related to the alleged liability of Lordon Enterprises, Inc., which was identified as Doe 2 in Plaintiff’s fictitious name amendment filed on 8/11/25. Plaintiff seeks to allege that Lordon Enterprises is liable as a property management company responsible for maintenance work at the property where Plaintiff alleges he was injured by a faulty ladder while performing roofing work. (Proposed Amended Complaint, ¶¶ 11-20.)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

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|    |                                                                                          | <p>The motion is unopposed. The motion and supporting declaration comply with California Rules of Court, Rule 3.1324.</p> <p>The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after commencement of trial. (Code Civ. Proc. §§ 473, 576.) “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (<i>Sullivan v. City of Sacramento</i> (1987) 190 Cal.App.3d 1070, 1081.)</p> <p>Here, trial is set for 4/9/27 and there is no showing of prejudice arising from the proposed amendment. Therefore, the motion is granted.</p> <p>Plaintiff shall file and serve the amended complaint within 20 days of this order.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 8. | <b>HALBERDA VS. HIDDEN CANYON ESTATES HOMEOWNERS ASSOCIATION</b><br><b>2022-01299111</b> | <p><b>1. DEMURRER TO AMENDED COMPLAINT</b></p> <p>Defendants John Alevizos and Georgia Alevizos’ Demurrer is SUSTAINED in part as to 2nd cause of action without leave to amend the OVERRULED in part as to the 1st cause of action.</p> <p>The Alevizoses’ and Halberdas’ requests for judicial notice are granted as records of this court. Additionally, the Court takes judicial notice, sua sponte, of the signed stipulation dismissing the prior lawsuit with prejudice. (ROA 64, Case No. 30-2020-01145204-CU-BC-CJC.)</p> <p><u>1st Cause of Action – Breach of Equitable Servitudes</u></p> <p>“The prerequisite elements for applying the doctrine to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding.” (<i>Boeken v. Philip Morris USA, Inc.</i> (2010) 48 Cal.4th 788, 797, [cleaned up].)</p> <p>The Halberdas first claim they lacked privity with the HOA in the prior action because their claims in this case are in conflict with the prior settlement agreed upon. Privity requires the party in the prior proceeding represented the same legal right. (<i>Zaragosa v. Craven</i> (1949) 33 Cal.2d 315, 318.) The claim in the prior proceeding was whether the Alevizoses could maintain a fence on their property. (RJN, Ex. A.) The Sub-HOA was defending the prior proceeding to enforce the CC&amp;Rs. (RJN, Ex. A.) Thus, part of the Halberdas’ claims in the first cause of action are precluded. “The Halberdas seek preliminary and permanent injunctive relief compelling the Defendants to rescind their settlement agreement ... and further compelling Defendants to remove any and all landscaping, fencing</p> |